

title	Conflict of Interest Disclosure and Notarized Certifications (Items 4 and 5)
date	2026-08-28
address	4535, 4537, 4539 & 4541 Arcado Rd SW, Lilburn, GA 30047 — Land Lot 123, 6th District, Gwinnett County (PINs R6123 033 / 015 / 014 / 162)
status	DRAFT — content and signing plan for form pp. 4–7; answers marked [to be completed by applicant] are declarations only the signers can make

Conflict of Interest Disclosure, Applicant Certification and Property Owner Certifications

Application items: Instructions item 4 — "Conflict of Interest Form ... Must be filed within ten (10) days of filing a rezoning ... application"; item 5 — "Notarized Signatures ... The form must have notarized signatures of both the property owner and applicant, or an attachment, if multiple owners are involved"; Lilburn Zoning Ordinance 2023-603 §1003-4.2 ("Application form ... including signed and notarized signature of property owner"). The city's form reproduces the statute on pp. 4–5 under the heading "Chapter 67A ... Section 36-37A-1...-4"; the correct citation is **O.C.G.A. §36-67A-1 through -4** ("Conflict of Interest in Zoning Actions", effective 1 July 1984) — the "36-37A" on the form is a typographical error in the city's document and should not be copied into anything the applicant writes.

1. What O.C.G.A. §36-67A requires of this applicant

Provision	Requirement	How it applies here
§36-67A-1(1) "Applicant"	The person who applies for a rezoning action and any attorney or other person representing or acting on behalf of that person	Mohammed Awad, plus any attorney, land planner, engineer or consultant who appears for the application; each such representative has the same disclosure duty
§36-67A-1(5) "Local government official"	Any member of the governing authority (Mayor and City Council) or any member of a planning or zoning commission	Lilburn Mayor, the City Council members and the Lilburn Planning Commission members serving during the two-year look-back — VERIFY the roster on the city website before signing
§36-67A-3(a) Disclosure of campaign contributions	If the applicant has, within the two years immediately preceding the filing , made campaign contributions aggregating \$250.00 or more , or gifts having an aggregate value of \$250.00 or more, to any such official, the applicant and the attorney representing the applicant must file a disclosure report showing the official's name, each contribution's amount and date, and each gift ≥ \$250	Look-back window: 2024-09-25 → 2026-09-25 if filed 2026-09-25 (or 2024-10-30 → 2026-10-30 for the fallback cycle). "Contribution" is as defined in O.C.G.A. §21-5-3(7) — money, in-kind services, loans and the like to a candidate or campaign committee
§36-67A-3(b) Timing	The disclosure "shall be filed within ten days after the application for the rezoning action is first filed "	Due 2026-10-05 if filed 2026-09-25 (2026-11-09 if filed 2026-10-30). Practice: file the signed form with the application so the 10-day clock is never at issue
§36-67A-2 Officials' own disclosure	An official with a property or financial interest in the affected property (or whose family member has one) must disclose and disqualify	Not the applicant's duty, but the applicant should know it: no Lilburn official is an owner of record of the four parcels or of the 31 adjoining parcels per the 2026 digest (docs/06) — family relationships cannot be checked from the digest (VERIFY if any name is recognized)
§36-67A-3(c)–(d) Opponents	An opponent who made ≥ \$250 in contributions in the two years must disclose at least five calendar days before the first hearing	Informational; if organized opposition appears (the 2025 petition — docs/11), the city, not the applicant, enforces this
§36-67A-4 Penalty	Knowing failure to comply is a misdemeanor	Sign only what is true; when in doubt, disclose

2. Disclosure of Campaign Contributions and/or Gifts (form p. 6) — content

Question on the form: "Have you, within the two years immediately preceding the filing of this application, made campaign contributions or gifts of an aggregate value that is \$250.00 or more to the Mayor and Council Members or a member of the Lilburn Planning Commission? YES NO."

Answer: [to be completed by applicant] — expected: NO (no contributions or gifts of \$250 or more in aggregate to any Lilburn Mayor, Council member or Planning Commission member in the prior two years). This is a personal declaration under a criminal-penalty statute; the package cannot make it for the signer. Before answering, the applicant (and each representative) should check bank/credit-card records and any campaign-finance filings for the look-back window against the current and former officials' names (Georgia Government Transparency and Campaign Finance Commission filings list contributors by name — **VERIFY**).

Table (Name of Official / Contribution-Gift / Description / Date): leave blank if the answer is NO; if YES, list every contribution and gift, one line each, and attach additional sheets as the form allows.

Who signs the disclosure/certification (form p. 5, "Conflict of Interest Certification for Rezoning"):

Signer	Capacity	Required?
Mohammed Awad	Applicant (owner of R6123 033/015; contract purchaser of R6123 014/162)	Yes — §36-67A-3(a)
Any attorney or representative who acts for the application before the city	Applicant's attorney/representative	Yes , each — §36-67A-1(1) and -3(a) ("the applicant and the attorney representing the applicant")
Santos C. Mendez; Lesvia Rosario Roblero de Leon	Owners of record of R6123 014/162 (sellers)	Not required by the statute unless they are applicants; recommended that each also sign a copy — it costs nothing, and some Georgia cities treat every signatory owner as an applicant. VERIFY staff preference at the pre-application conference

Certification text (form p. 5, verbatim): "The undersigned below, making application for rezoning, has complied with the Official Code of Georgia, Section 36-67A-1, et. seq, Conflict of Interest in Zoning Actions, and has submitted or attached the required information on the forms provided." Fields: Signature of Applicant/Applicant's Attorney or Representative; Date; Type or Print Name; Title (write "Applicant / Property Owner"); Notary Public; Date; (Seal).

3. Applicant Certification (form p. 7) — text and consequences

Verbatim: "The undersigned below is authorized to make this application and is aware that no application or reapplication affecting the same property shall be acted upon within twelve (12) months from the date of last action by the Mayor and Council, unless waived by the Mayor and Council. In no case shall an application or reapplication be acted upon in less than six (6) months from the date of last action by the Mayor and Council. Further, no application may be withdrawn once advertised and must receive final action by the Mayor and Council."

What the applicant is agreeing to (Lilburn Zoning Ordinance 2023-603):

- **§1003-10 Withdrawal.** The application may be withdrawn at the applicant's discretion, on notice to the Director, **only until the date of the legal advertisement of the City Council public hearing**; after that "all applications, having been advertised, shall be considered by the Mayor and Council ... and shall receive final action", and no part of the fee is refunded once a hearing is scheduled (§1003-10.2). On the 2026-09-25 cycle the Planning Commission ad runs about 2026-09-29 and the Council ad at least 30 days before 2026-11-09 — i.e. the practical last day to withdraw is **early October 2026**. A weak staff report or Planning Commission recommendation therefore has to be judged *before* the Council ad, not after.
- **§1003-11 Frequency of filing.** After a **denial** by the City Council, no application affecting the same land (or any portion of it) is accepted for **12 months** unless the Mayor and Council waive the period, and in no case sooner than 6 months. RZ-2025-01 on this site was **tabled on 2025-08-28 and never heard or denied** (FACTS §2b), so no bar is running now — but a denial of this application would burden all four parcels, including the sellers' land, until late 2027.
- "Authorized to make this application": for R6123 014/162 the authority is the owners' written consent (§1003-2) — the notarized Property Owner Certifications in §4 below and the purchase contract's cooperation covenant.

Signature block: Signature of Applicant — Mohammed Awad; Date; Type or Print Name — Mohammed Awad; Title — Applicant / Property Owner (R6123 033, 015) and Contract Purchaser (R6123 014, 162); Notary Public; Date; (Seal). Sign in the presence of a Georgia notary public with government photo ID; black ink.

4. Property Owner Certification (form p. 7) — who signs for which parcel

Verbatim: "The undersigned below, or as attached, is the record owner of the property considered in this application and is aware that if an application is denied by the Mayor and Council, no application or reapplication affecting the same land shall be acted upon within twelve (12) months from the date of last action by the Mayor and Council, unless waived by the Mayor and Council. In no case shall an application or reapplication be acted upon in less than six (6) months from the date of last action by the Mayor and Council. Further, no application may be withdrawn once advertised and must receive final action by the Mayor and Council."

The form carries one owner signature block; the Instructions (item 5) accept "an attachment, if multiple owners are involved". Attach **one Property Owner Certification page per owner** (three pages), each notarized:

#	Owner of record (2026 digest, exactly as vested)	Signs for	Digest deed reference (VERIFY vesting on the recorded deed)	Notes
1	AWAD MOHAMMED (Mohammed Awad)	R6123 033 (4541 Arcado Rd SW, 0.99 ac) and R6123 015 (4539 Arcado Rd SW, 2.00 ac)	Deed Book 61414, Pages 680 and 683 (2024-09-06/07)	Sole owner of record; signs as owner and as applicant (§3) — two separate notarized signatures
2	MENDEZ SANTOS C (Santos C. Mendez)	R6123 014 (4537 Arcado Rd SW, 2.00 ac) and R6123 162 (4535 Arcado Rd SW, 4.45 ac)	Deed Book 60727, Page 25 (2023-07-20)	Co-owner; both co-owners must sign — a certification by one of two record owners is not the owner's signature §1003-4.2 requires
3	ROBLERO DE LEON LESVIA ROSARIO (Lesvia Rosario Roblero de Leon)	R6123 014 and R6123 162	Deed Book 60727, Page 25 (2023-07-20)	Co-owner; as above. Print the name exactly as vested

Checklist for the owner pages:

1. **Title check before signing (VERIFY):** pull the vesting deeds (GSCCCA) for all four parcels and confirm (a) the grantee names match the digest, (b) no additional owner, estate, trust or lender consent is needed, (c) no recorded restriction or option affects the sellers' authority. If a parcel is held by an entity or estate, the signer's authority (officer resolution, letters testamentary) is attached.
2. **Power of attorney:** if either seller signs through an attorney-in-fact, attach the recorded POA; otherwise each signs personally before the notary with photo ID.
3. **Language:** if a signer prefers Spanish, provide a translation of the certification for reading, but the signed page is the English form; the notary acknowledges the signature, not the content (**VERIFY** with the notary that an interpreter is not required).
4. **Notary:** Georgia notary public; seal; date; the notary may not be a party to the transaction.
5. **Dates:** all signatures dated within 30 days before filing; re-execute if the application is amended in a way that changes the request (e.g. lot count or conditions) — **VERIFY** staff practice.
6. **Consent as contract purchaser (§1003-2):** the sellers' notarized certifications are the "owner's written consent"; keep a countersigned copy with the contract.

5. The Mendez / Roblero cooperation covenant — must be in the purchase contract

Because the sellers will still own R6123 014 and 162 through both hearings, and because §1003-10 and §1003-11 bind their land once the application is advertised, the purchase contract for 4535/4537 Arcado Rd SW must contain an express **cooperation covenant**. Minimum content (for the closing attorney to draft — this is not legal advice):

1. Sellers consent to the buyer filing, prosecuting and amending a rezoning application (R-1 → R-2) covering their parcels as part of the assemblage, as contract purchaser under Lilburn Zoning Ordinance 2023-603 §1003-2.
2. Sellers will execute, before a notary and within 5 business days of request, the Property Owner Certification, any owner consent, the conflict-of-interest form if the city requires owners to sign, and any re-execution required by an amendment or a re-filing.
3. Sellers permit the city's public-hearing sign on the frontage, site visits by staff, Planning Commission and Council members, the boundary survey, the sewer-invert survey, topographic survey, stream delineation, soil borings and rock probes (FACTS §2b), with reasonable notice and restoration.
4. Sellers will not encumber, subdivide, lease long-term or convey the parcels, apply for any zoning action, or oppose the application, during the contract term.
5. Sellers acknowledge that once the application is advertised it cannot be withdrawn (§1003-10) and that a denial bars a new application on their land for 12 months (§1003-11); the contract allocates that risk (e.g. buyer's option to terminate before the Council legal ad; seller's remedy limited to earnest money).
6. Zoning contingency: closing conditioned on R-2 approval with conditions acceptable to the buyer, final and unappealed (Georgia zoning appeals run 30 days from the decision — **VERIFY** the appeal period with counsel); the term covers filing 2026-09-25 → Council 2026-11-09 plus a tabling/continuance allowance and one re-hearing cycle.
7. Sellers will attend the hearings if requested, and will not make statements to the city inconsistent with the application.
8. Survival: the covenant survives an assignment of the contract to the buyer's development entity.

6. Signing schedule

When	Action
Pre-application conference (≈ 2026-09-18)	Confirm with the Planning Director: whether sellers also sign the conflict-of-interest form; one owner page per owner; whether the clubhouse is reported as non-residential (docs/01)

When	Action
Before filing	Title check on all four parcels; purchase contract with \$5 covenant executed; three notarized owner pages + notarized applicant certification + notarized conflict-of-interest certification
Filing day (2026-09-25)	File all certifications with the application; the 10-day disclosure clock starts
≤ 2026-10-05	Conflict-of-interest disclosure on file (already filed if included on filing day)
Before the Council legal ad (early October 2026)	Last opportunity to withdraw (§1003-10) — decide on the strength of the staff report / Planning Commission outcome

Disclaimer: This is an AI-generated analysis for preliminary planning purposes. All findings must be verified by a licensed professional before use in design, permitting, or regulatory submissions.